

Attachment 1
Army Open Solicitation (AOS)
Active Capability Gap (ACG) Procedures
Revised – 26 March 2026

SECTION A - ACG SOLICITATION PROCEDURES

The below sections outline the competitive procedures to submit an Active Capability Gap (ACG) response to an Army Example Area. These procedures do not apply to Calls for Solutions, which are governed by their own process. This document governs the procedures for all CSO or BAA ACG submissions. ACG Solution Brief submissions will be accepted during the period of availability noted on Army Open Solicitation W9128Z-25-S-A002) cover page.

Any awards resulting from these procedures are as follows:

CSO - Fixed price and Fixed Price Incentive awards either using FAR Part 12 Acquisition of Commercial Items or Other Transaction (OT) authorities.

BAA – Cost type, Fixed price, and other contract types using FAR-based awards and OT authorities.

If the Government does not respond to a Company's ACG submission, then the Government may retain the Company's submission for consideration at a future date.

SECTION B – ACG PHASES OVERVIEW

The ACG solicitation portion may consist of up to three (3) phases: Solution Brief, Live Pitch, and full Solution Proposal. Phase 1 shall follow the procedures within Section C. Procedures for Phase 2 and/or Phase 3 will be governed by the accepting mission partner and corresponding contracting activity and provided within the invitation for its respective Phase.

Phase 1 – Solution Brief

Solution Briefs submitted in response to an Army Example Area (AEA) shall be submitted as specified in Section C.1. The Government will evaluate Solution Briefs against the criteria stated in Section C.2. The Government will not pay companies for the cost(s) associated with Solution Brief submissions.

Phase 2 – Live Pitch Session (unless bypassed)

Companies whose Solution Briefs are selected for further consideration may be invited to provide a live pitch. The government reserves the right to limit the number of Companies invited to pitch. As such, a company's solution may be selected for further consideration, however not invited to pitch. The Government will not pay

Companies for costs associated with live pitches, unless otherwise stipulated. The Government reserves the right to record live pitches. The Government also reserves the right to bypass Phase 2 in its entirety.

Phase 3 – Solution Proposal

Companies who are selected for further consideration may be invited to submit a full solution proposal. All awards are subject to the availability of funding. The Government will not pay Companies for costs associated with the Solution Proposal (e.g., proposal development, negotiations) in Phase 3, unless otherwise stipulated.

B.1 Guidelines for Solution Briefs, Live Pitches, And Solution Proposals

- a. Unnecessarily elaborate brochures or proposals are not desired.
- b. When applicable, use of a diagram(s) or figure(s) to depict the essence of the proposed solution is strongly encouraged.
- c. Companies may submit multiple Solution Briefs in response to AEAs, if each submission represents a separate and distinct concept. Individual Solution Briefs may only address one (1) concept in response to an AEA.
- d. The period of performance will be included in each award, however generally not greater than 24-months.
- e. Technical data with military application may require appropriate approval, authorization, or license for lawful exportation.
- f. All Solution Briefs, Live Pitches, and Solution Proposals shall be unclassified. Those containing company proprietary data that is not to be disclosed to the public for any purpose or used by the Government except for evaluation purposes shall include the following sentences on the cover page:

“This [select one: Solution Brief, Live Pitch, or Solution Proposal] includes data that shall not be disclosed outside the Government, except to non-Government personnel for evaluation purposes, and shall not be duplicated, used, or disclosed -- in whole or in part -- for any purpose other than to evaluate this submission. If, however, an agreement or contract is awarded to this Company as a result of -- or in connection with -- the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent agreed upon by both parties in the resulting Agreement. This restriction does not limit the Government's right to use the information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]”

Each restricted data sheet shall be marked as follows:

“Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.”

- g. Foreign-Owned businesses may independently submit a solution brief or do so as part of a teaming arrangement with one or more United States-Owned businesses. However, the ability to obtain an agreement based upon a submission may depend upon the ability of the Foreign-Owned business to obtain necessary clearances and approvals to obtain proscribed information.
- h. ACG Solution Briefs shall be submitted electronically to the email listed in the **BASE SOLICITATION, SECTION J - CONTACT INFORMATION**.
- i. Submissions sent through other channels than required or after this open solicitation response period has ended, may not be considered, reviewed or evaluated.
- j. Entities submitting Solution Briefs that are not chosen for the Phase 2 – Live Pitch or Phase 3 - Solution Proposal may be notified in writing as soon as practicable.
- k. Identification of Intellectual Property (IP) and restrictions. The Solution Brief shall identify (1) any patent involved in the effort and any royalty associated with the patent; and (2) any restrictions on the Government’s rights (e.g. Data rights) in using, disclosing, reproducing, and/or modifying technical data, computer software, and/or non-technical data (e.g. Business/financial/administrative data and AI/ML training data) involved in the effort.
- l. PII and/or PHI related information is prohibited from being included within ACG submissions.

B.2 Small Business and Domestic Sourcing (Applicable to FAR-based procurements only)

- a. Representation of small business size and status: The NAICS code(s) shall be in accordance with the appropriate employee small business size standard under 13 CFR Part 121 and deemed appropriate by the KO/AO.

During the Phase 1 Solution Brief, Companies shall identify their small business size and socio-economic status, as well as small business size and socio-economic status of any proposed team members or subcontractors under the NAICS identified, or the NAICS the Company believes would be appropriate pursuant to FAR 52.219-1, Small Business Program Representations (February 2020). Socio-economic status refers to status as a small disadvantaged business, 8(a), women-owned, veteran-owned, service-disabled veteran-owned, and HUBZone small business concerns, and any related identifications.

- b. Small business subcontracting plans and small business participation: FAR-based procurement contracts awarded pursuant to this open solicitation (including 10 U.S.C. 4022 follow-on production contracts) shall include FAR 52.219-8, Utilization of Small Business Concerns (Oct. 2018). FAR-based

contracts awarded pursuant to this open solicitation (including 10 U.S.C. 4022 follow-on production contracts) which are meeting FAR Subpart 19.7 criteria for small business subcontracting plans shall include FAR 52.219-9 Small Business Subcontracting Plan (January 2025). Companies shall address plans to comply with these requirements as part of Phase 3 Solution Proposal, if seeking FAR Part 12 contracts, or if seeking OTs which provide for follow-on non-competitive production contracts. Companies not seeking either instrument in the preceding sentence shall clearly state so as part of their Solution Proposal and shall address these requirements as part of competition for follow-on production contracts. In the event that any follow-on production contracts are required to have small business subcontracting plans and are negotiated using FAR Part 15 negotiation procedures, DFARS 215.304(c) Small Business Participation Plans shall be required.

- c. Foreign-Owned businesses may independently submit a solution or do so as part of a teaming arrangement with one (1) or more United States-Owned businesses. However, the ability to obtain an agreement based upon a submission may depend upon the ability of the Foreign-Owned business to obtain necessary clearances and approvals to obtain proscribed information.
- d. Small business subcontractors shall receive prompt and accelerated payment under FAR 52.232-40, and DFARS 232.903.

B.3 Commercial Terms and Conditions

- a. Consistent with FAR Part 12, Companies may propose commercial terms and conditions.
- b. FAR-based contracts are subject to FAR 52.212-4, Contract Terms and Conditions - Commercial Items (Oct 2018), FAR 212-5, DFARS 212.301 and DFARS 227.7102-4.

SECTION C - PHASE 1 - SOLUTION BRIEF

C.1 Phase 1 – Solution Brief Content

Solution Briefs shall not exceed five (5) written pages using 12-point font, or alternatively, Solution Briefs may take the form of briefing slides which shall not exceed fifteen (15) slides. Submissions shall be submitted as one (1) document in Adobe PDF file format. The Government will not consider inserted textboxes/pop-ups or internet links to additional information as part of the Solution Brief and will not consider such information in its evaluation of submissions. Solution Briefs are intended to be clear, concise and succinct submissions.

The Government anticipates evaluating compliant solution briefs within 90 days after receiving the submission.

Solution Briefs shall include the following at a minimum:

a. Title Page (does not count against page limit)

- i. Company Name, Title, Date, Point of Contact Name, E-Mail Address, Phone, and Address. If registered in SAM.gov, include the Commercial and Government Entity (CAGE) code, and Unique Entity Identification (UEI) code.
- ii. Specifically identify the AEA for which the Solution Brief is submitted and include the relevant Program/Government POC, if known.
- iii. Company shall propose the intended award instrument, which shall be bound to the applicable laws and regulations. The Government will determine and approve the resultant award instrument.
- iv. Identify proposed NAICS code and title based on appropriateness and employee small business size standard under 13 CFR Part 121 (applicable to FAR proposed instrument only).

b. Executive Summary (one page limit; counts toward page limit)

- i. Provide an executive summary of the solution.

c. High-Level Solution/Concept (counts toward page limit)

- i. Describe the unique technical aspects of your solution/concept and how it is relevant and important to the respective AEA.
- ii. Describe how the solution/concept is innovative and fulfills requirements.
- iii. Describe how the proposed solution/concept solves a capability gap/problem and/or provides potential innovative technological advancements.
- iv. Describe the solution/concept capabilities and scalability.
- v. Describe how the proposed technical approach is feasible, achievable, and supported by a technical team that has the expertise and experience to accomplish the proposed solution/concept.
- vi. If CSO, identify whether the proposed solution/concept includes a pilot or demonstration of existing commercial technology (identified as commercially available and viable technology), or the development of technology for potential defense application. Identify the DoD Technical Readiness Level (TRL). If development or adaptation is proposed, discuss the suggested path to maturity. Identify aspects which may be considered proprietary.

- vii. If BAA, identify whether the proposed solution/concept includes a pilot or demonstration for the development of technology for potential defense application. Identify the DoD Technical Readiness Level (TRL). If development or adaptation is proposed, identify at what phase the adaptation is (1) basic research, (2) applied research, (3) advanced technology development, or (4) advanced component development, prototypes and incidental production AND discuss the suggested path to maturity. Identify aspects which may be considered proprietary.
- d. *ROM/Schedule (two page limit; does not count toward page limit)*
 - i. Submit one (1) Rough Order of Magnitude (ROM) and one (1) notional schedule demonstrating the solution/concept timeline milestones to maturity. Companies may use assumptions in the development of the ROM and shall annotate the assumptions within the ROM tab.
- e. *Company Viability (counts toward page limit)*
 - i. Provide a brief overview of the company. Provide a summary of current fundraising to date or a summary of the top line (gross sales and revenues).
 - ii. If CSO, provide a summary of product/solution commercialization and go-to-market strategy.
- f. *Affirmation of Business Status Certification (does not count against page limit)*
 - i. Include Appendix A for each company that is a participant of the solution/concept. (e.g. Certificate of Status)
- g. *Intellectual Property Statement/Agreement/Disclosures (does not count against page limit).*
 - i. As needed, include a separate disclosure for each company that is a participant of the solution/concept.

C.2 Phase 1 – Solution Brief Compliance Check

The Government will first review the Company's Solution Brief to ensure compliance with the submission requirements of C.1. The compliance check is a prerequisite to the Technical Evaluation of content in Section C.3. Solution Briefs not in compliance with submission requirements may be excluded from further evaluation. If excluded from further evaluation, the Government will notify the Company as soon as practicable.

C.3 Phase 1 – Solution Brief Basis of Evaluation

Compliant solution briefs submitted in response to an AEA will be evaluated against the below criteria. The Government reserves the right to use external market research in the evaluation of a Company's viability. In the event multiple submissions are received

for an AEA, the Government reserves the right to select all, some, or none of the solution submissions submitted in response to this open solicitation and may result in more than one award or no awards.

The Government intends to evaluate the Solution Brief to determine which proposed solutions have the potential to best meet the Government's needs utilizing the evaluation criteria below.

- a. **Technical Merit:** The Government will evaluate the Technical Merit of a Company's Solution Brief. Technical merit is defined as having relevance to the AEA, innovation, solves a capability gap and/or provides innovative technological advancements. The technical approach shall demonstrate the ability to scale and be determined feasible and achievable. In addition, the Government finds the technical approach and/or underlying technology to be a compelling solution.
- b. **Schedule:** The Government will evaluate the feasibility of the Company's proposed solution/concept project schedule and maturity path.
- c. **Viability:** The Government will evaluate the submitted company overview, and if applicable, summary of product/solution commercialization and market strategy for viability.

C.4 Phase 1 - Solution Brief Selection Process

Based on the evaluation, the Solution Brief will be categorized as Selected for Further Consideration; Retained for Future Consideration; or Not Selected for Further Consideration. Selection into the next Phase will be based on the criteria listed above, Government need, and funding availability.

Selected for Further Consideration: The submitted Solution Brief has been determined to be of technical merit, represents a feasible schedule, and the Company is considered viable.

Retained For Future Consideration: The submitted Solution Brief has been determined to be of technical merit, represents a feasible schedule, and the Company is considered viable; however, there is no current Government need, manpower and/or funding available. The solution will be retained in a solution repository for future consideration.

Not Selected for Further Consideration: The submitted Solution Brief does not represent the necessary degree of technical merit, a feasible schedule, and/or Company viability to warrant further consideration.

Companies selected for further consideration may be invited to participate in the next

Phase, subject to the availability of funds. The Army anticipates that AEAs may routinely receive more Solution Briefs than resources to award. All compliant Solution Brief submissions will be fairly evaluated, however, only select Solution Briefs with the most compelling solutions will be invited to Phase 2 and/or Phase 3. The government reserves the right to limit the number of Companies invited to Phase 2 and/or Phase 3. As such, a Company's solution may be evaluated as **retained for future consideration**. **Submissions evaluated as retained for future consideration will be stored in a repository. Solution Briefs whether retained for future consideration**, selected or not selected for Phase 2 and/or Phase 3 will be notified in writing as soon as practicable and will include selection outcome and feedback.

Companies whose Solution Brief is not selected for further consideration may resubmit a solution brief, however, are cautioned that if the new solution brief submission is identical to the first submission, it will not be evaluated.

SECTION D - PHASE 2 AND/OR PHASE 3

Phase 2 and/or Phase 3 submission requirements and evaluation criteria will be outlined within the invitation into the respective Phase.

SECTION E – AWARDS

See the Army Open Solicitation (AOS) **BASE DOCUMENT, SECTION E**.

SECTION F - ADDITIONAL INFORMATION

F.1 Security Clearances

If awarded a contract or an OT under the procedures of this open solicitation, the Company will be responsible for providing personnel with appropriate security clearances to ensure compliance with Government security regulations. The Company shall fully cooperate on all security checks and investigations by furnishing requested information to verify the Company employee's eligibility for any required clearance.

The Company's proposed solution (e.g., data, integration with supporting DoD Infrastructure, architecture) will determine the personnel security clearance and/or facility clearance requirements for the prototype effort. The Government will provide additional details regarding the personnel security clearance and/or facility clearance requirements in the appropriate Phase.

F.2 Security Requirements and Classification

Responses under this open solicitation shall be unclassified. Any security requirements and security classification specifications will be determined and requested at the appropriate phase in Section D above. If the Company requires classification then please contact the email identified in AOS Base Document, Section J - Contact

Information.

F.3 Data Storage

To protect against seizure and improper use by non-United States (U.S.) persons and government entities, all data stored and processed by/for the DoD must reside in a facility under the exclusive legal jurisdiction of the U.S. If awarded a contract or OT under the procedures of this open solicitation, the Company shall be required to maintain all government data that is not physically located on DoD premises within the 50 States, the District of Columbia, and outlying areas of the U.S., unless otherwise authorized by the responsible Government, as described in DoD Instruction (DoDI) 8510.01, *Risk Management Framework for DoD Systems*, and the DoD Cloud Computing Security Requirements Guide.

During the performance of a contract or OT, if Government data is co-located with the non-Government data, the Company shall be required to isolate the Government data into an environment where it may be reviewed, scanned, or forensically evaluated in a secure space with access limited to authorized Government personnel identified by the Contracting or Agreements Officer, and without the Company's involvement. The Company shall be required to record all physical access to the cloud storage facilities and all logical access to the Government data. This may include the entrant's name, role, purpose, account identification, entry and exit time. The Company shall be required to provide such records to the Contracting/Agreements Officer or designee in accordance with the agreement or upon request to comply with federal authorities.

F.4 Company Incurred Evaluation Costs

As specified in Section B, the Government will not reimburse Companies for any costs incurred while participating in Phases 1 through 3 of the open solicitation process. Additionally, the Government will not consider the costs associated with participating in Phases 1 through 3 as allowable charges and such costs shall not be included within the ROM or any pricing information.

F.5 Export Controls

Research findings and technology developments arising from a resulting prototype OT may constitute a significant enhancement to the national defense and to the economic vitality of the United States. As such, in the conduct of all work related to this effort, the recipient shall be required to comply strictly with the Arms Export Control Act, 22 U.S.C. § 2751-2794, including the International Traffic in Arms Regulation (ITAR), 22 C.F.R. § 120 et seq.; the Export Administration Act, 50 U.S.C. app. § 2401-2420; the

National Industrial Security Program Operating Manual, 32 CFR § 117; and the Department of Commerce Export Regulation, 15 CFR § 730-774.

F.6 Congressional Notification

IAW PGI 212.7005 Congressional notification, notification to the congressional defense committees shall be made no later than 45 days after the award of a contract valued at more than \$100 million resulting from a CSO. The notification shall include:

- (1) A description of the innovative commercial product, commercial service, or technology acquired;
- (2) A description of the requirement, capability gap, or potential technological advancement with respect to which the innovative commercial product, commercial service, or technology acquired provides a solution or a potential new capability;
- (3) The contract award amount; and
- (4) The contractor awarded the contract.

F.7 Cost-Share

Cost-sharing contracts will also be considered for award. A cost-sharing contract is a cost-reimbursement contract where the Contractor receives no fee and is reimbursed only for an agreed upon portion of its allowable cost. It may be used when the Contractor agrees to absorb a portion of the cost in the expectation of substantial compensating benefits. The purpose of cost-sharing is to encourage contractors to contribute to R&D projects and to ensure the efficient use of resources. To use this type of contract, the Contractor's accounting system must be adequate for determining costs applicable to the contract. Appropriate Government surveillance during performance will provide reasonable assurance that efficient methods and cost controls are used.

F.8 Payment Obligations

All payment obligations of the Government shall be subject to receiving appropriations from Congress for the purpose, time, and amount of the obligation.

F.9 Amendments

All ACG submissions pending evaluation will be evaluated against the most recent amended Attachment 1 on SAM.gov.

APPENDIX A

AFFIRMATION OF BUSINESS STATUS CERTIFICATION (ABSC)

Every significant participating entity shall complete the following table and provide a signature representing its certification.

*Legal Entity Name	
Industry Size Standard for NAICS	☐ Large ☐ Small Socio Economic Status:
*SAM UEI No.	
*CAGE Code	
*Tax Identification No.	
*Active SAM Registration	Yes ☐ No Expiration Date:
Address 1	
Address 2	
City/State/Zip	
POC Name/Title	
POC Phone/e-mail	

* This information is required for the entity serving as the Prime/Lead/Principal and as applicable for all other legal entities. Submit one (1) Form per entity.

The Entity named above represents that it is (check one of the following boxes):

☐ **A Nontraditional Defense Contractor (NDC)** – Defined in 10 U.S.C. 3014: Nontraditional Defense Contractor - means an entity that is not currently performing and has not performed, for at least the one-year period preceding the solicitation of sources by the Department of Defense for the procurement or transaction, any contract or subcontract for the Department of Defense that is subject to full coverage under the cost accounting standards prescribed pursuant to section 1502 of title 41 and the regulations implementing such section. (see 10 U.S.C. 2302(9)).

☐ **A Nonprofit Research Institution (NRI)** – Defined in 15 U.S.C. 3703 Definitions - the term (3) "Nonprofit institution", means an organization owned and operated exclusively for scientific or educational purposes, no part of the net earnings of which inures to the benefit of any private shareholder or individual. It includes federally funded research and development centers, as identified by the National Scientific Foundation in accordance with the Government wide Federal Acquisition Regulation issued in accordance with section 1303(a)(1) of title 41 (or any successor regulation thereto).

☐ **A Traditional Defense Contractor** – A Traditional Defense Contractor is an entity that does not meet the definition of a Nontraditional Defense Contractor (NDC).

The undersigned hereby certifies that the representations made herein are accurate and true regarding the entity identified above. I authorize my electronic signature to carry the same weight and legal effect as my written signature.

Signature	
Printed Name	
Title	
Date	

In addition to submitting the Affirmation of Business Status for all entity participants, the Prime Offeror [or Sole Offeror] shall submit an explanation on how the Prime [or Sole Offeror] is satisfying the requirements under **10 USC 4022(b)(d) Appropriate Use of Authority**.- (1) (conditions is met).

The Prime Offer [or Sole Offeror] explanation provided below (text box) contains language supporting one of the following three areas (**check one of the following boxes**):

☐ **At least one Nontraditional Defense Contractor (NDC) or Nonprofit Research Institution (NRI)** is participating to a **significant extent** in the prototype project. **If checked:** Provide an explanation of the effort and the significance of the NDC or NRI's contribution that supports at least one of the following factors (Ref OTA Guide Glossary, "Significant Extent" page 37) in the box below:

- a) Supplying a new key technology, product or process.
- b) Supplying a novel application or approach to an existing technology, product or process.
- c) Provides a material increase in the performance, efficiency, quality or versatility of a key technology, product or process.
- d) Accomplishes a significant amount of the prototype project.
- e) Causes a material reduction in the cost or schedule of the prototype project.
- f) Provides for a material increase in performance of the prototype project.
- g) Provides additional capability beyond those described above necessary for this effort.

Provide a total estimated cost and percentage of the NDC or NRI associated with the proposal. (Note: While cost is an indicator for the level of NDC or NRI participation, there is no specific cost threshold required.)

☐ **All significant participants** in the transaction other than the Federal Government are small businesses (including small businesses participating in a program described under section 9 of the Small Business Act (15 U.S.C. 638)) or nontraditional defense contractors.

☐ **At least one third of the total cost** of the prototype project is to be paid out of funds provided by sources other than the Federal Government. If selected, the Cost Share details shall be provided with the ROM/Cost/Price submission.

Prime Offeror - Explanation for 10 USC 4022(b)(d) participating to a significant extent:

[Replace Sample Text - XYZ Corp] has teamed with several Nontraditional Defense Contractors that collectively are contributing to a significant extent as summarized below:

Supplying a novel application or approach to an existing technology, product or process:

a) New key technology, product or process: [LMNO LLC will provide]

b) Supplying a novel application or process: [1234 Inc will provide]

c) Material increase in the performance, efficiency, quality or versatility:

d) Accomplishes a significant amount of the prototype project:

e) Causes a material reduction in the cost or schedule of the prototype project:

f) Provides for a material increase in performance of the prototype project:

g) Provides additional capability beyond those described above necessary for this effort. [ABC will provide Cloud Services at scale] and [EFG LLC will provide software that will.]

Total estimated cost and percentage of NDC contribution to the Prototype is [\$XX,XXX] and [XX]%.